

Apex Software Agreement

1. Parties & license

This fictional Software Agreement takes effect March 1, 2026 between Apex Software Cooperative (Provider) and Harborline Design Co. (Customer). Provider licenses its hosted project-planning application for Customer's internal operations for up to 100 users. The service includes administration controls, CSV export, standard support and three onboarding sessions. Customer retains all ownership in uploaded records. Provider retains ownership in the application and grants access for the duration of the subscription. Neither party may use the other's marks publicly without written permission. The parties and commercial relationship are fictional. These four source pages are authored for a portfolio demonstration and are not an executed legal instrument.

2. Initial term & transition

The initial term lasts three months, from March 1 through May 31, 2026. Provider will provision the service within five business days and assist Customer's administrator with setup. After the initial term the agreement continues in successive monthly periods under Section 6; there is no new annual minimum. The cancellation notice period in Section 5 still applies during monthly renewals and may cause up to three additional months of fees after notice. Customer may add seats through a separate written amendment; no extra seats are assumed in this agreement. Provider may update the software provided essential planning and export functions remain available.

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3. Price & Net 45 terms

The service costs USD 1,500 per month, equivalent to USD 18,000 for twelve months of uninterrupted use. The annualized amount is a comparison figure, not an annual commitment. Provider invoices monthly in arrears. Customer must pay undisputed invoices within forty-five calendar days of receipt (Net 45). Taxes are additional. Customer may dispute an amount within thirty days of receipt and withhold only the disputed portion while the parties investigate in good faith. Simple interest of 0.5% per month applies to undisputed sums more than fifteen days beyond the due date, subject to applicable limits. No annual prepayment, onboarding fee or separate cancellation penalty is charged.

4. Payment cure & continuity

Provider may suspend access only when an undisputed amount remains unpaid thirty calendar days after its due date and after an additional fifteen calendar days' written cure notice. Good-faith disputed balances cannot trigger suspension. Provider will restrict only the accounts reasonably necessary and keep data export available during a payment suspension. Service will resume within one business day of payment. Billing continues for contracted periods until termination takes effect. An unresolved billing dispute must be escalated to each party's contract administrator before suspension. Security-related restrictions may be applied immediately where necessary to contain active harm, with a written explanation and restoration plan within one business day.

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5. Termination & cancellation notice

Either party may terminate for convenience by giving ninety calendar days' written notice. Termination takes effect on the last day of the monthly service period in which that notice period expires, but never before the initial three-month term ends. Customer pays normal monthly fees through the effective termination date; there is no accelerated annual balance or separate early cancellation fee. Any prepaid fees covering periods after that date must be refunded. Either party may terminate for material breach remaining uncured thirty days after written notice. Customer may also terminate without further commitment if the availability commitment is missed in three consecutive months. The ninety-day notice is longer than the renewal period and remains binding during month-to-month renewal.

6. Month-to-month renewal

Following May 31, 2026, the service automatically renews for successive one-month periods until termination becomes effective under Section 5. Renewal does not create an annual obligation. Provider must give at least one hundred twenty days' written notice of a price increase, and increases may not exceed 3% in any twelve-month period. Customer can give its ninety-day cancellation notice after receiving a price-change notice, though termination remains aligned to a monthly period-end. If an increase would otherwise take effect before timely cancellation is effective, the prior price applies through cancellation. Notices are delivered in writing to designated contract administrators and are effective on confirmed receipt.

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7. Mutual limits & protections

Each party's aggregate liability is capped at fees paid or payable during the six months before the event giving rise to the claim, equivalent to USD 9,000 at the initial monthly rate. Neither party is liable for consequential, incidental or punitive damages, including lost profits. Fraud, willful misconduct and Customer's obligation to pay agreed fees are outside these limits. Confidentiality, data-security and intellectual-property indemnity claims remain within the mutual six-month cap; there are no additional uncapped Customer-content indemnities. Provider will defend claims that the unmodified application infringes third-party intellectual property within that cap. The comparatively low cap also limits Customer's recovery from Provider; it should not be treated as an unqualified benefit to Customer.

8. SLA & transition assistance

Provider commits to 99.95% monthly availability, excluding scheduled maintenance of up to two hours per month with seventy-two hours' notice, Customer-caused outages and force majeure. Availability below 99.95% but at least 99.5% earns a 10% monthly-fee credit; below 99.5% earns 20%. Credits must be requested within thirty days of month-end and are capped at 20% of the affected month's fee. Missing the commitment for three consecutive months permits Customer's termination under Section 5. Critical incidents receive an initial response within one business hour. Customer receives sixty days of read-only export access after termination at no extra fee. Provider deletes remaining data within ninety days, except records required by law.